

FORMAL NOTICE OF BREACH AND PAYMENT RESERVATION

Reference: NOB-MEDCARE-2026-03-25

Date: March 25, 2026

From: MedCare Clinics SARL

To: BioServe Medical Systems SARL

Subject

Repeated equipment downtime, missing maintenance records, and disputed invoice items under EMSA-MC-BS-2025-018.

1) Breach Allegations

MedCare records show that BioServe failed to satisfy the critical onsite response standard for the March 21 Ariana outage. MedCare also has no complete preventive maintenance report for the Ariana MRI unit for February 2026.

2) Disputed Invoice

MedCare disputes Invoice BS-INV-2026-0317 dated March 17, 2026.

- BioServe claimed amount: 64,380 TND
- MedCare accepted amount pending support: 39,750 TND
- Disputed amount: 24,630 TND

The disputed amount includes unsupported emergency callout fees, replacement part handling fees, and remote diagnostic charges.

3) Cure Requests

MedCare requests:

- Root cause report by March 30, 2026
- Corrective maintenance plan by April 1, 2026
- Complete February and March service logs by April 1, 2026
- Revised invoice and supporting work orders by April 3, 2026

4) Reservation of Rights

MedCare reserves all contractual and legal remedies, including recovery of direct outsourcing costs, regulatory response costs, and termination if the breach is not cured within the contractual cure period.